

		Plaintiff shall give notice of this ruling.
6	Dugar vs. Estate of Joann Kelperis 30-2025-01520975	<u>Demurrer</u> Defendant Estate of Joann Kelperis' Demurrer to Complaint is SUSTAINED with 15 days leave to amend as the entire Complaint and as to the 5th through 9th Causes of Action of the Complaint. Defendant Estate of Joann Kelperis' Request for Judicial Notice is DENIED. (See Cal. Rules of Court, rule 3.113(l) ["Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)."]; Cal. Rules of Court, rule 3.1306(c) ["A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material."].) <u>Pending Motion</u> Defendant Estate of Joann Kelperis demurs to the entire Complaint filed by Plaintiff Lanny Jay Dugar and to the 5th through 9th Causes of Action of Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters

		alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Lack of Legal Capacity</u> Defendant demurs to the entire Complaint on the basis that an estate is not an entity and lacks the legal capacity to be sued. Defendant is correct. As the Court of Appeal has stated: It is conceded that plaintiff Seymour M. Lazar, an attorney at law, appearing in propria persona, erred in naming the “Estate of Nathan Richard Lazar, Deceased,” as the defendant in the action (instead of naming the executors of the will of said decedent as defendants). The “Estate” of a decedent is not an entity known to the law. [Citation] In <i>Estate of Bright v. Western Air Lines</i>, 104 Cal.App.2d 827, 828–829, 232 P.2d 523, 524, it was said: “An ‘estate’ is not a legal entity and is neither a natural nor artificial person. It is merely a name to indicate the sum total of the assets and liabilities of a decedent, or of an incompetent, or of a
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		bankrupt. [Citations.] An 'estate' can neither sue nor be sued." (<i>Lazar v. Lazar's Estate</i> (1962) 208 Cal.App.2d 554, 557.) Plaintiff failed to file an opposition or respond to the demurrer, and thus, has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will sustain the demurrer on this basis. <u>Premature</u> Defendant also contends that the Complaint fails because it is premature, pursuant to Probate Code section 9351. That provision states: An action may not be commenced against a decedent's personal representative on a cause of action against the decedent unless a claim is first filed as provided in this part and the claim is rejected in whole or in part. (Probate Code, § 9351.) Here, the Complaint alleges that "[a]fter August 7, 2025, upon the passing of Joann Kelperis, the Estate of Kelperis became the Defendant in this action." (Compl., ¶ 2.) However, the Complaint does not allege that a claim was filed in the Probate Court and rejected in whole or in part. (See <i>Hentsch v. Porter</i> (1858) 10 Cal. 555, 559-560 [failure to allege claim presentation to estate administrator is basis for demurrer].) (fn.1) Thus, the court will sustain the demurrer on this basis. <u>Uncertainty</u>
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		given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, the demurrer is asserted against the original Complaint such that Plaintiff has not had a prior opportunity to amend. Therefore, the court will exercise its discretion and grant leave to amend. <u>Motion to Strike</u> Defendant Estate of Joann Kelperis Motion to Strike is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Estate of Joann Kelperis moves to strike the punitive damages allegations, enhanced damages allegations, prayer for relief for relating to partnerships, prayer for relief relating to statute of frauds, and prayer for relief for punitive damages of the Complaint filed by Plaintiff Lanny Jay Dugar. In light of the court's ruling sustaining the demurrer to the entirety of the Complaint, the Motion to Strike is moot and will be taken off calendar. However, Defendant's arguments on the motion to strike are well taken and Plaintiff should keep them in mind if Plaintiff intends to amend the Complaint. Defendant shall give notice of these rulings.
7	Gemcrest LLC vs. O.Rhyan Capital Management, LLC 30-2025-01467722	<u>Motions to Be Relieved as Counsel</u> Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Sunil K. Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Ila Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant O.Rhyan Capital Management, LLC, is